

Law & Motion

2. 9:00 AM CASE NUMBER: C23-02738
CASE NAME: WILLIAM WALKER VS. GEORGE WHITEHEAD
HEARING ON SUMMARY MOTION JUDGMENT CONT'D FROM 6/26/26 PER TR
FILED BY: ABM GENERAL SERVICES, INC
TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant ABM General Services, Inc. ("ABM General") For the reasons set forth, the motion for summary judgment is **denied**.

Background

Plaintiff William Walker alleges he was injured in a motor vehicle accident on December 16, 2021 when his vehicle was struck by a box truck being driven by George Whitehead. (Compl. ¶¶ 12, 14.) The complaint names, among other defendants, Flowers Baking Company of Modesto, LLC, erroneously named in the complaint as Flowers Foods, Inc. ("Flowers"). Defendants ABM Industries, Inc. and ABM General Services, Inc. were added as Doe defendants in April 2024. (Voss Decl. Exhs. B, C.) ABM General moves for summary judgment. Plaintiff opposes the motion.

Legal Standards Governing Defendant's Motion for Summary Judgment

Under Code of Civil Procedure § 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) The issues to be considered on a motion for summary judgment are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161.)

When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant has met this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference . . . ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) "All doubts as to the propriety of

granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen, supra*, 159 Cal.App.4th at 1483.)

Note on the Pleadings

The hearing on the motion was originally scheduled for June 26, 2026. The Court issued a tentative ruling addressing various deficiencies in Plaintiff's opposition and directed Plaintiff to file an amended response to the moving party's Separate Statement of Undisputed Material Facts in conformity with the applicable California Rules of Court. Plaintiff timely filed an Amended Response to the Separate Statement and Amended Compendium of Exhibits. Defendant was given the opportunity to file a supplemental reply based on Plaintiff's amended pleadings, but ABM General did not file a supplemental reply.

Analysis

Plaintiff's complaint alleges a single cause of action for negligence based on a motor vehicle accident. The general elements of negligence are not in dispute: the essential elements are duty, breach of duty and causation. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) ABM General contends that the undisputed material facts show it owed no duty to Plaintiff, and that Plaintiff does not have, and cannot obtain, evidence to demonstrate the existence of a duty owed to Plaintiff by ABM General because defendant Whitehead who was driving the vehicle was not an employee of that company.

A. Undisputed Material Facts

ABM General supports its motion with a Separate Statement ("SS") of Undisputed Material Facts ("UMFs") consisting of 28 UMFs. There is no genuine dispute that Plaintiff's complaint includes a single cause of action for negligence and that ABM General was added as defendant Doe 2 by doe amendment filed April 23, 2024. (UMFs 1, 3.) Plaintiff alleges that on December 16 2021, his vehicle was struck by an Enterprise box truck driven by defendant Whitehead. (UMFs 4, 5; Pl. Resp. to UMFs 4, 5 [though Plaintiff is not willing to indicate the location of the accident as undisputed in response to UMF 4].)

There is no dispute that Flowers and ABM Janitorial Services -South Central, Inc. ("ABM Janitorial") entered into a written Leased Labor Agreement dated July 28, 2013 ("Lease Agreement"), that the Lease Agreement contains the statement quoted in UMF 7 that during an employee's assignment to Flowers, that Flowers can direct and control the employee to fulfill its business needs, and that on June 14, 2020, ABM Janitorial and Flowers amended the Lease Agreement by including a new Fee/Benefit Addendum. (UMFs 6-8.) Though Plaintiff lists the UMFs as disputed at least in part, Plaintiff's responses to those UMFs do not genuinely dispute the specific facts stated. (Pl. Resp. to UMFs 6-8.) There is also no genuine dispute that ABM General assumed the duties of ABM Janitorial under the Lease Agreement in January 2017. (UMF 9; Pl. Resp. to UMF 9.)

ABM General did not own, lease, or control any of the vehicles involved in the December 16, 2021 accident. (UMFs 14, 21.) The vehicle Whitehead was driving when the accident occurred was entrusted to him by defendant Flowers, Flowers gave him permission to drive the vehicle, and Whitehead was responsible for the vehicle's maintenance. (UMFs 20, 24.) Whitehead was working for Flowers delivering bread on the date of the accident, and Flowers had provided him a handheld device "for purposes of working his route and delivering bread" for Flowers. (UMFs 23, 26.) Plaintiff

also does not dispute that Whitehead had no supervisor at ABM General supervising his work for Flowers. (UMF 28.)

B. Facts Plaintiff Asserts Are Disputed and Plaintiff's Additional Facts

Plaintiff lists as disputed, at least in part, UMFs 6-13, 15-19, 22, 25, and 27. As set forth above, the Court finds no genuine dispute as to UMFs 6-9.

The gist of Plaintiff's disputes regarding the other disputed UMFs is that Plaintiff contends ABM General is a dual employer of Whitehead, and Plaintiff disputes any implication from any of the UMFs and supporting evidence that ABM does not have that status. (Pl. Resp. to UMFs 10-13, 15-19, 22, 25, and 27.) In response to UMFs 10-13, 15-19, 22, 25, and 27, Plaintiff cites evidence regarding the employment functions ABM General retained with regard to Whitehead, including administration of his payroll and issuance of his wage statements and paychecks, maintaining his employment records, administering his employee benefits, having an on-site recruiter who collected his time records, and performing other human resources functions, including issuance of a corrective action notice when Whitehead violated work policies and procedures. (Pl. Resp. to UMFs 10-13, 15-19, 22, 35, and 27.)

Plaintiff has submitted 12 additional facts ("AFs") which he contends raise triable issues. AFs 1 and 4 and supporting evidence show ABM Industries maintained historical payroll records for Whitehead, with categories for various benefits and pay provided. (AFs 1 and 4, citing Miller Decl. Exhs. A and B; *see also* AF 11 regarding benefits.) AF 2 cites the issuance of W-2 statements for Whitehead showing his employer as ABM General Services, Inc. (not ABM Industries as stated in the AF). (AF 2, citing Miller Decl. Exh. C.) Plaintiff cites a Notice of Corrective Action issued by ABM to Whitehead after Flowers had also documented the policy violation by Whitehead. (AF 7.) Plaintiff also points to a performance review of Whitehead performed by ABM. (AF 8.) ABM's on-site recruiter collected his time cards. (AF 9.) The Punch Report summarizing Whitehead's punch card time records show he was clocked in at the date and time of the accident. (AF 10.) In AF 12, Plaintiff also points to the fee ABM billed for its leased labor reflected in the Fee/Benefits Addendum, though Plaintiff's contention regarding the "plus" percentage is not supported by the evidence cited. (AF 12, citing Miller Decl. Exh. H ["plus" percentage in the operative 2020 Fee/Benefits Addendum shows "wage plus 30.32%" not 38.32%].)

C. Summary of Applicable Law Regarding Special Employment Doctrine

The foundational principle for imposition of liability on an employer for the negligent acts or omissions of an employee is respondeat superior, which makes an employer vicariously liable for the employee's torts. (*State ex rel. Dept. of California Highway Patrol v. Superior Court* (2015) 60 Cal. 4th 1002, 1015.) " '[T]he principal justification for the application of the doctrine of respondeat superior in any case is the fact that the employer may spread the risk through insurance and carry the cost thereof as part of the costs of doing business.' [Citations omitted.]" (*Id.* [citing in part *Hinman v. Westinghouse Electric Co.* (1970) 2 Cal.3d 956, a case cited by ABM General.] In *Bussard v. Minimed, Inc.* (2003) 105 Cal.App.4th 798, cited by ABM General, the Court elaborated on the respondeat superior doctrine: "Under the doctrine of respondeat superior, an employer is ordinarily liable for the injuries its employees cause others in the course of their work. Respondeat superior imposes liability whether or not the employer was itself negligent, and whether or not the employer had control of the employee. The doctrine's animating principle is that a business should absorb the costs its

undertakings impose on others." (*Id.* at 803 [addressing doctrine in the context of the "going and coming rule" and exceptions in the inapposite factual context of whether employee's job was a contributing cause of an accident that occurred on her commute home after she was exposed to pesticide at work, which she contended made her impaired].)

Both parties cite and rely on *Marsh v. Tilley Steel Co.* (1980) 26 Cal.3d 486, in which the California Supreme Court addressed special employment relationships. The specific circumstances in *Marsh* involved the negligence of an employee of the special employer who injured another of the special employer's workers. The Court held that in that circumstance, the injured special employee "is not barred by workers' compensation law from suing the general employer of the tortfeasor in negligence on respondeat superior principles." (*Id.* at 490.) The Court further held, "The general employer is liable in tort if, at the time of the injury, it retained total or partial concurrent control over the tortfeasor's work." In this case the evidence presented to the trial court permits the inference that the tortfeasor remained wholly or partially under the general employer's control at the time of the accident." (*Id.* [emphasis added].) (*See also Marsh, supra*, 26 Cal.3d at 492 [a special employment relationship arises if a general employer lends an employee to another "and relinquishes to a borrowing employer all right of control over the employee's activities" (emphasis added)].)

The Court also explained that the analysis regarding employer liability where an employee is loaned is not an "either or" analysis. "[W]e stress that that the jury need not find that Wynglarz remained *exclusively* defendant's employee in order to impose liability on defendant. Facts demonstrating the existence of a special employment relationship do not necessarily preclude a finding that a particular employee also remained under the partial control of the original employer. Where general and special employers share control of an employee's work, a 'dual employment' arises, and the general employer remains concurrently and simultaneously, jointly and severally liable for the employee's torts. [Citations omitted.]" (*Id.* at 495-496 [citing, among other decisions, *Strait v. Hale Construction Co.* (1972) 26 Cal.App.3d 941, 950].) (*See also State ex rel. Dept. of California Highway Patrol, supra*, 60 Cal. 4th at 1008 ["Under the common law, a special employment relationship arises when a 'general' employer . . . lends an employee to another employer and relinquishes to [the] borrowing employer all right of control over the employee's activities . . . " [Citation omitted.] 'During this period of transferred control, the special employer becomes solely liable under the doctrine of respondeat superior for the employee's job-related torts. [Citations.]' [Citation omitted.] Nevertheless, not all special employment relationships are exclusive. 'Where general and special employers share control of an employee's work, a "dual employment" arises, and the general employer remains concurrently and simultaneously, jointly and severally liable for the employee's torts. [Citations.]' [Citation omitted.]" (Emphasis added.))

The Court in *Marsh v. Tilley Steel Co., supra*, further expounded on the special employment doctrine, stating that "evidence of the following circumstances tends to negate the existence of a special employment: The employee is (1) not paid by and cannot be discharged by the borrower, (2) a skilled worker with substantial control over operational details, (3) not engaged in the borrower's usual business, (4) employed for only a brief period of time, and (5) using tools and equipment furnished by the lending employer." (*Marsh, supra*, 26 Cal.3d at 492-493 [emphasis added].) As one court following *Marsh* explained, "In cases involving borrowed employees, the courts have applied respondeat superior principles to hold the lending employer liable for the negligence of the borrowed employee

unless the lending employer has relinquished all right of control over the borrowed employee's activity and thereby created a special employment relationship between the employee and the borrowing employer. [Citation omitted.]" (*Huffman v. City of Poway* (2000) 84 Cal. App. 4th 975, 990.)

"The question whether a special employment relationship exists is generally a question of fact reserved for the jury. [Citation omitted.] 'However, if neither the evidence nor inferences are in conflict, then the question of whether an employment relationship exists becomes a question of law which may be resolved by summary judgment.' [Citations omitted.]" (*Wedeck v. Unocal Corp.* (1997) 59 Cal. App. 4th 848, 857.)

D. Application of the Law to the Record and the Existence of A Triable Issue

Plaintiff contends the facts and evidence he submits in opposition to the motion demonstrate that ABM General did not relinquish employer control over Whitehead when he was assigned to work at Flowers and that ABM was Whitehead's dual employer under the applicable employment law, such that ABM General may be held vicariously liable for Whitehead's negligence while driving for Flowers. Among other issues, Plaintiff points to ABM General's obligations with regard to employee benefits, payroll, including issuing Whitehead's paychecks, and other human resources functions, including ABM's retained right to issue corrective action and performance reviews. (Pl. Resp. to UMFs 7, 8, 11-13, 15-19, 25, 27; Pl. Afs 1-5, 7, 8, 11.)

It is questionable whether ABM General met its initial burden on the motion. Notably absent from the moving papers is any UMF with supporting evidence that ABM General had no control over the discharge or discipline of Whitehead during his employment with Flowers to demonstrate that ABM General had relinquished all control over Whitehead while he was loaned to work for Flowers. The Lease Agreement on which ABM General relies shows that ABM General did not relinquish total control over Whitehead.

The introductory paragraph of the Lease Agreement defines ABM Janitorial as the "Supplier." The first numbered paragraph of the Lease Agreement states:

1. Leasing Relationship. Supplier is in the business of leasing employees and hereby agrees to lease its employees (hereinafter "employees" or "assigned employees") to Client Company to fill work assignments and positions as requested by Client Company. **Supplier agrees that employees assigned to perform services under this Agreement shall be employees of Supplier.**

Supplier reserves the right of direction and control over employees, including right to hire, terminate, supervise, discipline and reassign the assigned employees. The parties recognize, however, that such employees will be under Client Company's direction and control during their assignment to Client Company, and that Client Company can direct and control the employees to fulfill its business needs and to comply with any legal requirements. **Supplier further retains the right of direction and control over the adoption of employment and safety policies and management of workers' compensation claims, claim filings and related procedures.** Client Company further has the

right, at its sole discretion, to accept or cancel the assignment of any employee by notifying Supplier.

(DiDomenico Decl. Exh. B [Lease Agreement ¶ 1 [all emphasis added].])

The Lease Agreement shows on its face that ABM General, as successor-in-interest in the Lease Agreement, agreed that the employees supplied under the Lease Agreement are employees of ABM General, not the Client Company. (DiDomenico Decl. Exh. B [Lease Agreement ¶ 1.]) There is no UMF or evidence that ABM General did not retain any authority at all over the loaned employees, such as Whitehead, including the control over the employee to impose employee discipline or other consequences for the loaned employee's misconduct up to termination of the employment, because the Lease Agreement expressly leaves such matters in the control of ABM General. (DiDomenico Decl. Exh. B [Lease Agreement ¶ 1.]) The 2020 Amendment to the Leasing Agreement left all terms of the 2013 Lease Agreement unaltered, except for the fee/benefit schedule. (DiDomenico Decl. Exh. C.)

Further, whether or not ABM General actually performed other responsibilities with which it is charged under the Lease Agreement, other duties ABM General is explicitly given under the Lease Agreement can support an inference of a continuing employment relationship by ABM General even while the employees are loaned to the Client Company. For example, ABM's duties under the Lease Agreement include paying payroll taxes, complying with payroll reporting requirements, obtaining all required worker's compensation insurance and administration of all worker's compensation claims, providing timely and accurate wage payments, maintaining personnel files, handling unemployment claims, complying with all employee termination laws, performing random drug and alcohol testing, "familiarizing employees with the Client Company's work rules and applicable policies and procedures," and maintaining and managing employee benefit plans. (DiDomenico Decl. Exh. B [Lease Agreement ¶ 2.a.-q.].) (*See also* DiDomenico Decl. Exh. B [Lease Agreement ¶ 4 [imposing "mutual duties" on ABM General and Flowers to comply with federal and state labor laws such as Title VII of the federal Civil Rights Act and the Family Medical Leave Act].])

Further, ABM General's evidence as to UMF 16 is in conflict. DiDomenico declares that ABM General "received no financial or other benefit from Defendant Whitehead's employment for Defendant Flowers." (UMF 16 [citing DiDomenico Decl. ¶ 8].) This statement is contradicted by the Lease Agreement itself and the Fee/Benefit Addendum, as amended. (DiDomenico Decl. Exh. B [Lease Agreement ¶ 6 ["Client Company shall pay Supplier the fees described in the attached Fee/Benefits Addendum." (Emphasis added.)].) The operative 2020 Fee/Benefits Addendum provides: "Fee Addendum for Leased Labor Positions" and lists different billing rates such as "wage plus 30.32%," and additional fees for "CA Overtime Billing Rate with a "1.4 multiplier" and "CA Double-Time Billing Rate" with a "1.8 multiplier." (DiDomenico Decl. Exh. C [emphasis added].) (*See also* Pl. AF 12.) ABM General has thus submitted contradictory evidence in support of its motion that raises a disputed fact.

ABM General did not meet its initial burden of demonstrating as a matter of law that ABM General turned over all control over Whitehead to Flowers and that ABM General had no control at all over Whitehead such that ABM General has no liability for Whitehead's alleged negligence while driving the vehicle as a matter of law. Even if it met its initial burden, the content of the Lease Agreement with the addendum at a minimum raises triable issues of fact regarding ABM General's role as a

general employer and the possibility that it was in a dual employment relationship with Flowers with respect to Whitehead when the accident occurred because it did not turn over "total" control over Whitehead's employment to Flowers. (*Marsh, supra*, 26 Cal.3d at 495-496.)

Plaintiff has also presented evidence that raises triable issues of fact regarding a possible dual employment. Among other evidence, Plaintiff's responses to UMFs include evidence of historical payroll summaries of "ABM Industries" for Whitehead as an employee (Miller Decl. Exhs. A, B), W-2 statements for Whitehead showing his employer as "ABM General Services, Inc." (Miller Decl. Exh. C), and a Notice of Corrective Action and a Performance Review for Whitehead, both bearing ABM's name, supported by evidence from the DiDomenico Deposition that both the Flowers supervisor on behalf of Flowers and the ABM on-site recruiter for ABM General separately addressed the violations of policy and corrective action with Whitehead (Miller Decl. Exhs. F, G, and I [DiDomenico DT 57:15-60:4]), and the fact that the ABM on-site recruiter collected Whitehead's time cards (Miller Decl. Exh. I [DiDomenico DT 49:10-23]). (*See also* Pl. AFs 1-3, 7-11.)

On the record before the Court, ABM has not shown that there are no material issues of fact in dispute and that ABM General is entitled to summary judgment in its favor as a matter of law.

Defendant's Evidentiary Objections to Miller Declaration

Obj. No. 1 – **Sustained.**

Conclusion and Ruling

Moving Party ABM General did not meet its initial burden on the motion for summary judgment by failing to submit facts and evidence demonstrating that it relinquished total control over Whitehead to Flowers while Whitehead was assigned to Flowers. Even if ABM General met its initial burden, Plaintiff has raised triable issues regarding whether Whitehead was a special employee of Flowers subject to the total and exclusive control of Flowers during his work for Flowers, including at the time of the accident, or whether Whitehead was subject to a dual employment relationship with Flowers and ABM General. The ABM General motion for summary judgment is therefore **denied**.

3. 9:00 AM CASE NUMBER: C23-02738
CASE NAME: WILLIAM WALKER VS. GEORGE WHITEHEAD
CONT'D FROM 6/27/2026 PER TR
FILED BY: ABM INDUSTRIES, INC
TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant ABM Industries, Inc. ("ABM Industries") For the reasons set forth, the motion for summary judgment is **granted**.

Background

Plaintiff William Walker alleges he was injured in a motor vehicle accident on December 16, 2021 when his vehicle was struck by a box truck being driven by George Whitehead. (Compl. ¶¶ 12, 14.) The complaint names, among other defendants, Flowers Baking Company of Modesto, LLC, erroneously named in the complaint as Flowers Foods, Inc. ("Flowers"). Defendants ABM Industries,